

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ALBERT ALSTON,

Index No. 520175/2024

Plaintiff,

COMPLAINT

-against-

CITY OF NEW YORK, POLICE OFFICERS
MORENO and OFFICERS JOHN DOES AND
JANE DOES, 1-10 said names being fictitious and
presently unknown,

Defendants.
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Plaintiff, by his attorneys, DAVIS, NDANUSA, IKHLAS & SALEEM, LLP, complaining of the defendants, alleges, upon information and belief, as follows:

1. At all times hereinafter mentioned, plaintiff, ALBERT ALSTON, was and still is a resident of the County of Kings, City and State of New York.
2. At all times hereinafter mentioned, defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "CITY") was and still is a municipal corporation existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant CITY employed persons as police officers and said persons were so employed as police officers in the New York City Police Department. **DEFENDANTS P.O. MORENO, JOHN AND JANE DOES 1-10** were at all times hereinafter mentioned, police officers employed by defendants CITY.
4. On or about the 27th day of July, 2023, within ninety days after the claim alleged herein arose, a notice of claim, in writing, sworn to by the claimant, was served upon the clerk designated by defendants to accept service.
5. The notice of claim set forth the name and post office address of the claimant, and of the claimant's attorney, the nature of the claim, the time when, the place where and the manner in which said claims arose, and the injuries and damages sustained herein as far as then practicable.
6. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment thereof has been neglected or refused.
7. This action was commenced within one year and ninety days after the happening of the event upon which the claim is based.

8. On or about the 27th day of April, 2023, at approximately 3:50 p.m. at 237 Nassau Street, Kings County, New York, the defendant, **CITY**, by its police officers, acting as agents and servants of defendant, **CITY**, and within the scope of their employment, and without just cause or provocation, falsely arrested and detained the plaintiff.
9. That said arrest and confined was due to the carelessness, recklessness and negligence of **THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICERS MORENO and JOHN DOES 1-10**. Detention was without probable cause and was unnecessary and was not required because of any act on the part of the plaintiff.
10. The Plaintiff was deprived of liberty and his constitutional rights were violated as **THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICERS MORENO and JOHN DOES 1-10** used excessive force when detaining and handcuffing him.
11. As a result of this arrest, plaintiff suffered pain and distress of mind and body, shock, embarrassment and emotional distress, economic injury, phycological injury all to his damage in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST

12. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "11", inclusively, with the same force and effect as if more fully set forth herein at length.
13. At the above-mentioned time and location, the plaintiff was falsely arrested and falsely imprisoned without any warrant or other legal process. Defendants arrested and handcuffed Plaintiff for several hours in which they deprived plaintiff of liberty and freedom of movement.
14. As a result of the acts of the defendants, and/or defendants' agents and/or employees, plaintiff was deprived of his liberty and was greatly humiliated and subjected to great mental and bodily distress due to the false arrest.
15. As a result of this false arrest, plaintiff suffered great emotional distress and was otherwise injured, all to his damage, in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT

16. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs numbered "1" through "15", inclusively, with the same force and effect as if more fully set forth herein at length.

17. As a result of the acts of the defendants, and/or defendants' agents and/or employees, plaintiff was deprived of his liberty, falsely imprisoned and was greatly humiliated and subjected to great mental and bodily distress due to the false imprisonment.
18. As a result of this false imprisonment, plaintiff suffered great physical pain and emotional distress, all to his damage, in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION FOR MALICIOUS PROSECUTION

19. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs "1" through "18" with the same force and effect as if more fully set forth herein at length.
20. That plaintiff was wrongly arrested and imprisoned by the defendants without probable cause to Plaintiff of any alleged crime and with no investigation made thereof, the plaintiff was maliciously prosecuted and charged, while being deprived of his liberty.
21. That after having to retain counsel and appear in court, notwithstanding plaintiff's elderly age and lack of transportation, plaintiff attended court and defendants failed to appear, and all charges against plaintiff were dismissed.
22. As a result of the acts of the defendants, and/or defendants' agents and/or employees, plaintiff was greatly humiliated and subjected to great mental and bodily distress due to the malicious prosecution.
23. As a result of this malicious prosecution, plaintiff suffered great physical pain and emotional distress, all to his damage, in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants on the First cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and judgment on the Second cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, and judgment on the Third cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action, and any other and further relief as to this court seems just and proper.

Dated: January 27, 2025
Brooklyn, NY

DAVIS, NDANUSA, IKHLAS & SALEEM, LLP

/s/Muhammad Ikhlas

BY: Muhammad Ikhlas, Esq.

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